See: E.O. 5521, 10404

2521

Executive Order

The tract of private land comprising 4.2 acres located near the south end of the eastern boundary of the Kahauiki (Fort Shafter) Military Reservation, District of Kona, Island of Oahu, Territory of Hawaii, granted by the Government of Hawaii to the Pacific Guano and Fertilizer Company by patent grant No. 3926 under date of April 1, 1896, which tract was erroneously included within the boundaries of the reservation by Executive Order of July 20, 1899 (G. O. 147, A. G. O., August 10, 1899), is hereby excluded therefrom, and that portion of King Street lying adjacent to said tract and south of that part of the boundary of the reservation marked by standard concrete monuments Nos. 30 and 31, and east of that part of the boundary marked by standard concrete monuments Nos. 31 and 32, as hereinafter described, likewise included within the boundaries of the reservation by said Executive Order, is also hereby excluded therefrom, and under the authority of Section 91 of the Act of Congress, approved April 30, 1900 (31 Stat. 141), entitled, "An Act to provide a government for the Territory of Hawaii," as amended by Section 7 of the Act of Congress, approved May 27, 1910 (36 Stat. 443), is hereby restored to its previous status under the control of the Government of the Territory of Hawaii.

The reservation as thus modified and in accordance with a re-survey of the boundaries thereof, completed in March, 1915, includes all lands within metes and bounds described as follows:

Beginning at a standard concrete monument, No. 1, situated in approximate latitude N. 21° 20′ 32.84″, longitude W. 157° 53′ 36.557″, at the North end of the stone causeway between Weli and Kaikikapu Fish Ponds, and about twenty feet south of the center of the Oahu Railway and Land Company's railroad track; thence, following the boundary line between Moanalua and Kahauiki (to monument No. 16),

1. 206° 09′ 03″– 415.9 feet to a standard concrete monument, No. 2; thence
2. 191° 03′ 59″–1167.2 feet to station No. 3, which is marked by a standard brass plate cemented into the top of a large rock called "Pohakuakai," on the north side of King Street; thence
3. 181° 14′ 50″–1255.2 feet to a standard concrete monument, No. 4; thence
4. 218° 15′ 41″–2043.4 feet to a standard concrete monument, No. 5, situated on Puu Kapu; thence
5. 218° 15′ 46″–1784.6 feet to a standard pipe monument, No. 6; thence
6. 263° 52′ 24″– 398.1 feet to a standard pipe monument, No. 7. From this point the boundary is an irregular line following the crest of the ridge to monument No. 16, through intermediate monuments located as follows, by direct azimuths and distances: From monument No. 7,
7. 245° 32′ 07″–2234.8 feet to a standard pipe monument, No. 8; thence
8. 226° 13′ 17″–1523.6 feet to a standard pipe monument, No. 9; thence
9. 227° 36′ 45″– 952.4 feet to a standard pipe monument, No. 10, at a point called "Mailehahai;" thence
10. 239° 33′ 54″–3823.7 feet to a standard pipe monument, No. 11; thence
11. 262° 00′ 50″– 639.3 feet to a standard pipe monument, No. 12; thence
12. 243° 15′ 46″–3536.4 feet to a standard pipe monument, No. 13; thence
13. 255° 58′ 26″–2905.3 feet to a standard pipe monument, No. 14; thence

14. 237° 24′ 34″– 835.2 feet to a standard pipe monument, No. 15; thence
15. 241° 41′ 13″– 758.9 feet to a standard pipe monument, No. 16, on the crest of the ridge at the head of Kahauiki Valley, and at the intersection of the Moanalua-Kahauiki and Kahauiki-Kalihi boundary lines, in approximate latitude N. 21° 22′ 47.367″, longitude W. 157° 50′ 22.763;" between monuments 16 and 30, the line follows the Kahauiki-Kalihi boundary. Between monuments No. 16 and No. 23, the boundary is an irregular line following the crest of the ridge, through intermediate monuments located as follows, by direct azimuths and distances: From monument No. 16,
16. 22° 49′ 45″– 905.5 feet to a standard pipe monument, No. 17; thence
17. 58° 41′ 57″–1186.2 feet to a standard pipe monument, No. 18; thence
18. 65° 51′ 14″–1324.6 feet to a standard pipe monument, No. 19; thence
19. 67° 28′ 14″– 735.9 feet to a standard pipe monument, No. 20; thence
20. 56° 30′ 43″–4094.2 feet to a standard pipe monument, No. 21; thence
21. 59° 14′ 55″–1496.6 feet to a standard pipe monument, No. 22; thence
22. 22° 04′ 14″–1699.8 feet to a standard pipe monument, No. 23, on crest of ridge at point called "Kapuukau" and occupying the point formerly called "triangulation station Kaholoakekua;" thence
23. 29° 33′ 54″–2998.8 feet to a standard pipe monument, No. 24 on crest of ridge; thence
24. 58° 16′ 30″–2074.4 feet to a standard pipe monument, No. 25 on summit of hill; thence
25. 61° 30′ 57″–4152.2 feet to a standard concrete monument, No. 26; thence
26. 313° 42′ 31″– 870.7 feet to a standard concrete monument, No. 27, at the northeast corner of Fern Park and on the west side of Middle Street; thence
27. 53° 41′ 21″–1236.5 feet to a standard concrete monument, No. 28; thence
28. 321° 02′ 48″– 213.5 feet to a standard concrete monument, No. 29; thence
29. 57° 17′ 17″– 262.2 feet to a standard concrete monument, No. 30, on the northeast side of King Street; thence
30. 139° 16′ 02″– 176.6 feet along the northeast side of King Street to a standard concrete monument, No. 31; thence
31. 57° 17′ 16″– 52.2 feet across King Street to a standard concrete monument, No. 32; thence
32. 57° 17′ 16″–1130.7 feet to a standard concrete monument, No. 33, on the north side of the Oahu Railway and Land Company's 40 foot right of way; thence
33. On a curve to the left, with a radius of 799 feet, along the north side of the Oahu Railway and Land Company's 40 foot right of way to a standard concrete monument, No. 34, the direct azimuth and distance being 284° 05′ 44″–239.9 feet; thence
34. 57° 17′ 13″– 311.7 feet to a standard concrete monument, No. 35, at junction of roads; thence

35. 62° 33′ 24″– 426.5 feet to a standard concrete monument, No. 36, on dyke at seaward toe of the Weli Fish Pond wall. From this point to the point of beginning the boundary follows in succession the seaward toe of Weli Fish Pond wall, the easterly shore line of Mokumoa Island and the easterly wall of the causeway between Weli and Kaikikapu Fish Ponds; direct azimuths and distances between monuments are as follows: From monument No. 36,

36. 15° 05′ 33″–244.75 feet to a standard concrete monument, No. 37, on dyke near fish pond wall; thence

37. 58° 19′ 04″–354.75 feet to a standard concrete monument, No. 38, on fish pond wall; thence

38. 114° 01′ 14″–622.62 feet to a standard concrete monument, No. 39, on fish pond wall, at its junction with Mokumoa shoreline; thence

39. 182° 27′ 41″–1721.3 feet to monument No. 1, the point of beginning.

The aggregate area is 1322 acres, more or less.

All azimuths are true Geodetic and except where otherwise specified the boundary extends in straight lines between monuments.

The standard concrete monument is molded in the shape of a truncated pyramid, having an upper base 8″ square and a lower base 12″ square. In the center of the upper base is set a brass plate 3″ square.

The standard pipe monument consists of a section of standard galvanized iron pipe, 3′ long and 3″ in diameter, filled with concrete and having a brass plate 2–½″ square set within the upper end.

The above described Kahauiki Military Reservation (Fort Shafter) is subject to the following described rights of way and easements:

1. Rights of way to the Oahu Railway and Land Company, deeded by the Authorities of Hawaii, under dates of February 4, 1899, and April 29, 1903, and ratified and confirmed by act of Congress entitled—"An Act to ratify and confirm the present right of way of the Oahu Railway and Land Company through the Military Reservation of Kahauiki, Territory of Hawaii," approved April 28, 1904 (33 Stat. 579), as follows:

(a) Deed dated February 4, 1899, to the Oahu Railway and Land Company.

All that portion of Kahauiki, District of Kona, Oahu, lying within 20 feet on either side of the center line of the Oahu Railway, being a strip 40 feet wide and approximately 780 feet long and containing an area of 0.72 acre, more or less, said center line being described in Liber 194, pages 7 and 8 on file in the Office of Bureau of Conveyances, Territory of Hawaii.

(b) Deed dated April 29, 1903, to the Oahu Railway and Land Company.

All that portion of Kahauiki, District of Kona, Oahu, lying within 20 feet on either side of the center line of the Oahu Railway, being a strip 40 feet wide and approximately 2045 feet long and containing an area of 1.88 acres, more or less, said center line being described in Liber 249, pages 160 to 167 on file in the Office of Bureau of Conveyances, Territory of Hawaii.

2. Revocable right of way to the Pearl Harbor Traction Company, Limited, 40 feet in width and upon such a route as should be approved by